

arguments as unsupported and/or irrelevant.

Obj. No. 6: The Court agrees that there is no motion before the Court on this hearing regarding whether Defendant can be compelled to accept electronic service, and the Court does not consider the issue as a result.

Obj. No. 7: The Court has considered the Ring doorbell footage in reaching its ruling with limited ability to discern the audio content, which is consistent with Defendant's attempt to transcribe the audio. (Saldana Suppl. Decl. Exh. B.)

Conclusion and Ruling

Weighing the evidence before the Court, the Court finds Plaintiff has demonstrated Saldana was personally served with the summons and complaint as stated under oath by the process server who performed the service and based on other evidence consistent with such service. The motion to quash service of the summons and complaint is therefore **denied**. Defendant shall file his responsive pleading **within 15 days of the date of service of notice of entry of the order** on the motion to quash. (Code Civ. Proc. § 418.10(b) ["The service and filing of the notice shall extend the defendant's time to plead until 15 days after service upon him or her of a written notice of entry of an order denying his or her motion, except that for good cause shown the court may extend the defendant's time to plead for an additional period not exceeding 20 days."].)

Law & Motion

3. 9:00 AM CASE NUMBER: C24-01225
CASE NAME: KEYONA TURNER VS. LEADERSTAT LLC
HEARING IN RE: COMPLIANCE HEARING SET BY THE COURTROOM
FILED BY:

TENTATIVE RULING:

The Court has reviewed the Declaration of Mayra Gonzalez and approves the final distributions from the settlement fund.

4. 9:00 AM CASE NUMBER: C24-02109
CASE NAME: KATHLEEN CABALLERO VS. FREEDOM FOREVER, LLC
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: FREEDOM FOREVER, LLC

TENTATIVE RULING:

The Motion to Be Relieved as Counsel is **granted**.

5. 9:00 AM CASE NUMBER: C25-02454
CASE NAME: SANDRA BELTRAN VS. MILTON HUEZO MARTINEZ
HEARING ON SUMMARY MOTION

FILED BY: HUEZO MARTINEZ, MILTON R.

TENTATIVE RULING:

Defendant and Cross-Complainant Milton Martinez's motion for summary adjudication of the first cause of action for partition in Martinez's cross-complaint is **denied**.

Plaintiff Sandra Beltran filed this case for quiet title based upon adverse possession and declaratory relief. Martinez filed a cross-complaint for partition by sale and accounting. The title for the property shows that Plaintiff and Defendant each own 50% in the property as joint tenants pursuant to a grant deed executed on January 10, 2018. Beltran alleges in her complaint that she has obtained full ownership of the property through adverse possession. In this motion, Martinez seeks summary adjudication of his partition cause of action in his cross-complaint.

"A co-owner of property has an absolute right to partition unless barred by a valid waiver. (Code Civ. Proc., § 872.710, subd. (b).) '[T]he right of partition may be waived by contract, either express or implied.' (*American Medical International, Inc. v. Feller* (1976) 59 Cal.App.3d 1008, 1014.)" (*LEG Investments v. Boxler* (2010) 183 Cal.App.4th 484, 493.) The trial court may grant summary judgment in a partition action and enter an interlocutory judgment directing partition of the property. (*Id.* at 498.)

"If the court finds that the plaintiff is entitled to partition, it shall make an interlocutory judgment that determines the interests of the parties in the property and orders the partition of the property and, unless it is to be later determined, the manner of partition." (Code Civ. Proc., § 872.720 (a).)

Martinez cites to section 872.720, which states that the court should order sale of the property if, "[t]he court determines that, under the circumstances, sale and division of the proceeds would be more equitable than division of the property." (Code Civ. Proc., § 872.820 (b).) While not the main issue in this motion, the Court notes that the Partition of Real Property Act, Code of Civil Procedure sections 874.311-874.323 was amended in 2023 and provides a new procedure for partition among co-tenants. Among its provisions is an appraisal by a neutral third party, buyout option for the co-tenants, and a procedure for open-market sales of the property. The Act also states a preference for partition in kind, "the court shall order partition in kind unless the court, after consideration of the factors listed in Section 874.319, finds that partition in kind will result in great prejudice to the cotenants as a group." (Code Civ. Proc., § 874.318 (a).) Thus, before the Court can order a partition by sale, it must consider the facts in section 874.319 and make the appropriate finding. That being said, the Court could enter an interlocutory judgment determining the parties' interests in the property and finding that a partition is appropriate. The kind of partition would be determined later in the process.

The main issue in this motion is whether the Court can determine the parties' interest in the property. In other words, does the evidence show that the parties are joint owners of the property

with a 50/50 interest in the property, or is a triable issue of material fact on Beltran's adverse possession theory.

Beltran argues that Martinez did not meet his initial burden because he did not address the adverse possession claim. This argument fails. In the context of Martinez's claim for partition based upon his 50 percent ownership interest, Beltran's adverse possession theory is an affirmative defense. Thus, Beltran may raise it in opposing the motion, but Martinez is not required to discuss the issue in his moving papers.

The Court finds that Martinez has met his initial burden by showing that the parties were co-tenants in the property with a 50/50 interest in 2018. (Martinez dec. 5 and ex. A.)

Therefore, the burden shifts to Beltran to show there is a triable issue as to her adverse possession claim. "The elements of an adverse possession claim consist of the following: (1) actual possession by the plaintiff of the property under claim of right or color of title; (2) the possession consists of open and notorious occupation of the property in such a manner as to constitute reasonable notice to the true owner; (3) the possession is adverse and hostile to the true owner; (4) the possession is uninterrupted and continuous for at least five years; and (5) the plaintiff has paid all taxes assessed against the property during the five-year period. [Citations.]" (*Bailey v. Citibank, N.A.* (2021) 66 Cal.App.5th 335, 351.)

When a co-tenant claims adverse possession, they must show notice of the hostile use or ouster to the other co-tenant. "The exclusive occupancy by a cotenant is deemed permissive; it does not become adverse until the tenant out of possession has had either actual or constructive notice that the possession of the cotenant is hostile to him." (*Dimmick v. Dimmick* (1962) 58 Cal.2d at 422.)

When there are co-tenants, "[e]ach tenant in common has a right to occupy the whole of the property. The possession of one is deemed the possession of all; each may assume that another in exclusive possession is possessing for all and not adversely to the others Before title may be acquired by adverse possession as between cotenants, the occupying tenant must bring home or impart notice to the tenant out of possession, by acts of ownership of the most open, notorious and unequivocal character, that he intends to oust the latter of his interest in the common property. Such evidence must be stronger than that which would be required to establish a title by adverse possession in a stranger." (*Hacienda Ranch Homes, Inc. v. Superior Court* (2011) 198 Cal.App.4th 1122, 1128 [internal citations and quotations omitted]; see also *Hunter v. Schultz* (1966) 240 Cal.App.2d 24, 28.)

Thus, the party claiming adverse possession often shows ouster of the co-tenant as a way of showing notice of the hostile use. (See, e.g. *Dimmick, supra*, 58 Cal.2d at 422.) " "An ouster, in the law of tenancy in common, is the wrongful dispossession or exclusion by one tenant of his cotenant or cotenants from the common property of which they are entitled to possession." [Citation.]" [Citation.] "[O]uster must be proved by acts of an adverse character, such as claiming the whole for

himself, denying the title of his companion, or refusing to permit him to enter.' [Citation.] 'Whether there has been an ouster is a legal question.' [Citation.]" (*Hacienda Ranch Homes, supra*, 198 Cal.App.4th 1122, 1128 (emphasis added); *Zaslow v. Kroenert* (1946) 29 Cal.2d 541, 548 (accord).)

Here Beltran's evidence shows she and Martinez purchase the property as joint tenants in January 2018. (Beltran dec. ¶5.) Martinez paid \$10,000 towards the down payment and assisted Beltran in qualifying for a loan. (Beltran dec. ¶6.) In February 2018, the parties ended their relationship and since then Beltran has solely and exclusively possessed and occupied the property. (Beltran dec. ¶7.) Since February 2018, Beltran has paid all mortgage payments, taxes payments and all capital improvements on the property. (Beltran dec. ¶¶10-14.) This evidence shows that there is at least a triable issue on items 1, 4 and 5 for adverse possession.

As to hostile use and notice, Beltran declares that since February 2018 she has excluded Martinez from the property and that he never sought to occupy, use or exercise possessory rights over the property. (Beltran dec. ¶8.) She also declares that in June 2020, Martinez came to the property in search of his tools. He requested permission to enter the home and Beltran refused to allow him to enter. Martinez did not attempt to enter the property and did not contest Beltran's possession or control of the property. (Beltran dec. ¶8.1.)

Here, there is a triable issue as to whether Beltran denied Martinez access to the property in June 2020 (more than five years before this complaint was filed). Refusing to permit Martinez to enter the property is sufficient to show ouster, which raises a triable issue as to items 2 and 3 for adverse possession.

Therefore, the Court finds that there is a triable issue of material fact as to adverse possession and denies Martinez's motion.

6. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
HEARING ON DEMURRER TO: COMPLAINT
FILED BY: BIOCARE MEDICAL LLC
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.

7. 9:00 AM CASE NUMBER: C25-03533
CASE NAME: IKONISYS, INC VS. LUIS LUZURIAGA
***HEARING ON MOTION IN RE: STRIKE**
FILED BY: BIOCARE MEDICAL LLC
TENTATIVE RULING:

As the Court was informed the parties have settled, this matter is taken off calendar.